

The Public Servants (Inquiries) Act, 1977

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State of Jammu-Kashmir - Act

The Public Servants (Inquiries) Act, 1977

JAMMU & KASHMIR

India

The Public Servants (Inquiries) Act, 1977

Rule THE-PUBLIC-SERVANTS-INQUIRIES-ACT-1977 of 1977

Published on 11 September 1920

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The Public Servants (Inquiries) Act, 1977

(Act No. 28 of Svt. 1977)

[Sanctioned by his Highness the Maharaja Sahib Bahadur per Chief Minister's endorsement No. 8372, dated 11th September, 1920 read with State Council Resolution No. 1, dated 8th April, 1925, Notification No. 14-L/81].

For regulating inquiries into the behaviour of Public Servants.

Whereas it is expedient to amend the law for regulating inquiries into the behaviour of public servants not removable from their appointments without the [sanction of the Government or any of the Ministers]

[Substituted by Act X of 2010 for 'sanction of His Highness or any of his Ministers'.]

, and to make the same uniform throughout [the territories of the State]

[Substituted by Act X of 2010 for 'the territories under His Highness'.]

; It is enacted as follows

1.

Short title, extent and commencement.

(1)

This Act may be called the Public Servants, Inquires Act, 1977.

(2)

It extends to the whole of Jammu and Kashmir State. It shall come into force on the 1st day of Baisakh, 1978.

2.

Article of charge to be drawn out for public inquiry into conduct of certain public servants.

- Whenever the Government shall be of opinion that there are good grounds for making a formal and public inquiry into the truth of any imputation of misbehaviour by any person in the service of the Government not removable from his appointment without the sanction of [the Government or any of the Ministers]

[Substituted by Act X of 2010 for 'His Highness or any of his Minister'.]

, it shall cause the substance of the imputations to be drawn into distinct articles of charge, and shall order a formal and public inquiry to be made into the truth thereof.

3.

Authorities to whom inquiry may be committed. Notice to accused.

- The inquiry may be committed either to the Court, Board or other authority to which the person accused is subordinate, or to any other person or persons, to be specially appointed by the Government, Commissioners for the purpose, notice of which commission shall be given to the person accused ten days at least before the beginning of the inquiry.

4.

Conduct of Government prosecution.

- When the Government shall think fit to conduct the prosecution, it shall nominate some person to conduct the same on its behalf.

5.

Charge of accuser to be written and verified. Penalty for false accusation. Institution of inquiry by the Government.

- When the charge shall be brought by an accuser the Government shall require the accusation to be reduced to writing, and verified by the oath or solemn affirmation of the accuser; and every person who shall wilfully and maliciously make any false accusation under this Act, upon such oath or affirmation, shall be liable to the penalties of perjury; but this enactment shall not be construed to prevent the Government from instituting any inquiry which it shall think fit, without such accusation on oath or solemn affirmation as aforesaid.

6.

Security from accuser left by Government to prosecute.

- When the imputations shall have been made by an accuser, and the Government shall think fit to leave to him the conduct of the prosecution, the Government before appointing the commission shall require him to furnish reasonable security that he will attend and prosecute the charge thoroughly and effectually and also will be forthcoming to answer any countercharge or action which may be afterwards brought against him for malicious prosecution or perjury or subordination of perjury as the case may be.

7.

Power of Government to abandon prosecution and to allow accuser to continue it.

- At any subsequent stage of the proceedings, the Government may, if it think fit, abandon the prosecution, and in such case may, if it think fit, on the application of the accuser, allow him to continue the prosecution, if he is desirous of so doing, on his furnishing such security as is hereinbefore mentioned.

8.

Powers of Commissioners, their protection, Service of their process Powers of Court, etc., acting under commission.

- The Commissioners shall have the same power of punishing contempt and obstructions to their proceedings, as is given to Civil and Criminal Courts by the Code of Criminal Procedure, and shall have the and powers for the summons of witnesses, and for compelling the production of documents, and for the discharge of their duty under the commission, and shall be entitled to the same protection as the District and subordinate Judges, except that all process to cause the attendance of witnesses or other compulsory process shall be served through and executed by the District or Subordinate Judge in whose jurisdiction the witness or other person resides, on whom the process is to be served. When the commission has been issued to a Court, or other person or persons having power to issue which process in

the exercise of their ordinary authority, they may also use all such power for the purposes of the commission.

9.

Penalty for disobedience to process.

- All person disobeying any lawful process issued as aforesaid for the purposes of the commission shall be liable to the same penalties as if the same had issued originally from the Court or other authority through whom it is executed.

10.

Copy of charge and list to be furnished to accused.

- A copy of articles of charge, and list of the documents and witnesses by which each charge is to be sustained, shall be delivered to the person accused, at least three days before the beginning of the inquiry, exclusive of the day of delivery and the first day of the inquiry.

11.

Procedure at beginning of inquiry.

- At the beginning of the inquiry the prosecutor shall exhibit the articles of charge to the Commissioners, which shall be openly read, and the person accused shall thereupon be required to plead "guilty" or "not guilty" to each of them which please shall be forthwith recorded with the articles of charge. If the person accused refuses, or without reasonable cause neglects, to appear to answer the charge either personally or by his counsel or agent, he shall be taken to admit the truth of the articles of charge.

12.

Prosecutor's right of address.

- The prosecutor shall then be entitled to address the Commissioners in explanation of the articles of charge, and of the evidence by which they are to be proved; his address shall not be recorded.

13.

Evidence for prosecution and examination of witnesses, Re-examination by prosecutor.

- The oral and documentary evidence of the prosecution shall then be exhibited: the witnesses shall be examined by or on behalf of the prosecutor and may be cross-examined by or on behalf of the person accused. The prosecutor shall be entitled to re-examine the witnesses on any points on which they have been cross-examined, but not on any new matter, without leave of the Commissioners who also may put such questions as they think fit.

14.

Power to admit or call for new evidence for prosecution. Accused's right to adjournment.

- If it shall appear necessary before the close of the case for the prosecution, the Commissioners may in their discretion allow the prosecutor to exhibit evidence not included in the list given to the person accused, or may themselves call for new evidence, and in such case the person accused shall be entitled to have, if he demand it, an adjournment of the proceedings for three clear days, before the exhibition of such new evidence exclusive of the day of adjournment and of day to which the proceedings are adjourned.

15.

Defence of accused, to be recorded only when written.

- When the case for the prosecution is closed, the person accused shall be required to make this defence. orally or in writing, as he shall prefer. If made orally, it shall not be recorded, if made in writing, it shall be recorded, after being openly read, and in that case a copy shall be given at the same time to the prosecutor.

16.

Evidence for defence, and of examination of witnesses.

- The evidence for the defence shall then be exhibited, and the witness examined, who shall be liable to cross-examination and re-examination and to examination by the Commissioners according to the like rules as the witnesses for the prosecution.

17.

Omitted.

18.

Notes of oral evidence.

- The Commissioners or some person appointed by them shall take notes in English or Vernacular of all the oral evidence, which shall be read aloud to each witness by whom the same was given, and, if necessary, explained to him in the language in which it was given, and shall be recorded with proceedings.

19.

Inquiry when dosed with defence. Prosecutor when entitled to reply and give evidence. Accused not entitled to adjournment.

- If the person accused makes only an oral defence, and exhibits no evidence, the inquiry shall end with his defence; if he records a written defence, or exhibits evidence, the prosecutor shall be entitled to a general oral reply on the whole case, and may also exhibit evidence to contradict any evidence exhibited for the defence, in which case the person accused shall not be entitled to any adjournment of the proceedings. Although such new evidence were not included in the list furnished to him.

20.

Power to require amendment of charge and to adjourn. Reasons for refusing adjournment to be recorded.

- When the Commissioners shall be of opinion that the articles of charge or any of them, are not drawn with sufficient clearness and precision, the Commissioners may, in their discretion, require the same to be amended, and may thereupon, on the application of the persons accused, adjourn the inquiry for a reasonable time. The Commissioners, may also, if they think fit, adjourn the inquiry for time to time, on the application either the prosecutor or the person accused, on the ground of sickness or unavoidable absence of any witness or other reasonable cause. When such application is made and refused, the Commissioners shall record the application, and their reason for refusing to comply with it.

21.

Report of Commissioners proceedings.

- After the close of the inquiry the commissioners shall forthwith report to Government their proceedings under the commission, and shall send with the record thereof their opinion upon each of the articles of charge separately, with such observations as they think fit on the whole case.

22.

Power to call for further evidence or explanation. Inquiry into additional articles of charge. Reference of report of Special Commissioners, Final orders.

- The Government, on consideration of the report of the Commissioners, may order them to take further evidence, or given further explanation of their opinions. It may also order additional articles of charge to be framed, in which case the inquiry into truth of such additional articles shall be made in the same manner as is herein directed with respect to the original charges. When Special Commissioners have been appointed, the Government may also, if it think fit, refer the report of the Commissioners to the court or other authority to which the person accused in subordinate for their opinion on the case; and will finally pass such orders thereon as appear just and consistent with its powers in such cases.

23.

Powers of Government under this Act by whom exercisable.

- The powers of the Government under this Act, may in all cases be exercised by [the Council of Minister]

[Substituted by Act X of 2010 for 'His Highness'.]

, and when the person accused can be removed from his appointment by a Minister in the State, those powers may also be exercised by that Minister.

24.

[Authority of Government not effected.

[Section 24 substituted by Act X of 1996.]

- Nothing in this Act shall be construed to effect the authority of Government for suspending or removing any public servant for any case without any inquiry under this Act.]

25.

Omitted.

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